

Local Government - The Foundation Track

Chapter F1.9 — From Zero: The Third Tier, the 73rd and 74th Amendments, and Why This Chapter Outscores Fundamental Rights

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NOTE · HOW TO USE THIS DOCUMENT

The chapter whose exam weight surprises candidates. It opens with the evidence: the verified 2023 paper drew FOUR Polity questions from local government and Finance Commissions against only TWO from Fundamental Rights, so this territory earns disproportionate attention. It then works the pre-1992 history from the Balwant Rai Mehta and Ashok Mehta Committees, and takes the 73rd Amendment on Panchayats in full - the three-tier structure with the population threshold below which the intermediate tier may be omitted, the Gram Sabha, five-year terms with the six-month re-election rule, reservations for SCs, STs and women, the State Election Commission, the State Finance Commission, and the Eleventh Schedule's 29 subjects. It then takes the 74th Amendment on Municipalities in parallel - the three types of urban body and the tests for classifying an area, Wards Committees, the Twelfth Schedule's 18 subjects, District and Metropolitan Planning Committees. It closes on PESA 1996, the honest assessment of what devolution has and has not achieved, and the distinction between constitutional obligation and State discretion that explains the gap. Study time 3 hours.

This is the FOUNDATION layer. The 73rd and 74th Amendment provisions, Schedule contents and article numbers are settled. The extent of actual devolution of funds, functions and functionaries varies greatly between States and is described qualitatively rather than with figures. Current counts of panchayats and municipalities change and are marked CONFIRM.

Table of Contents

0. Why This Chapter Earns More Than It Looks	3
1. Session 1 - The Road to 1992 ★★★★★☆	4
2. Session 2 - The 73rd Amendment: Panchayats ★★★★★	6
3. Session 3 - The 74th Amendment: Municipalities ★★★★★	9
4. Session 4 - The Eleventh and Twelfth Schedules ★★★★★	12
5. Session 5 - PESA, and What Devolution Achieved ★★★★★☆	15
6. Graded Practice - 42 Questions ★★★★★	17
6.1 Level 1 - Recognition	17
6.2 Level 2 - Understanding	18
6.3 Level 3 - Recruitment Test standard	19
7. Answers and Explanations	20
7.1 Level 1	20
7.2 Level 2	21
7.3 Level 3	22
8. One-Minute Revision	23
9. Five-Minute Wall Sheet	26

0. Why This Chapter Earns More Than It Looks

A topic most candidates skim, which outscored Fundamental Rights in the verified 2023 paper.

PYQ CONNECTION · THE EVIDENCE - AND IT SHOULD CHANGE HOW YOU ALLOCATE TIME

From the verified classification of the 2023 paper recorded in this manual's blueprint:

- 1 **Local government and Finance Commissions together supplied FOUR Polity questions**
- 2 **Fundamental Rights supplied TWO**

That is the single most counter-intuitive finding in Module 1's evidence base, and it has a straightforward explanation. **Fundamental Rights are conceptual** - they require reasoning about the scope of Article 19 or the tests under Article 14, and an examiner setting a 120-question objective paper across ten subjects has limited room for that. **Local government is FACTUAL and highly structured** - three tiers, two Schedules, fixed reservation percentages, defined terms of office, named committees. **It generates clean, unambiguous, single-answer questions in quantity.** **So the practical instruction for this chapter is different from F1.3's.** In Fundamental Rights you needed to understand a line of cases. **Here you need to learn a structure precisely** - the numbers, the Schedules, the thresholds, the tenures and the named bodies - because that is the form the questions take.

And note the pairing. Local government and the Finance Commission were counted together in the classification because they belong to the same examinable cluster: **fiscal and institutional machinery below the Union level**. F1.9 covers local government; **F1.10 covers the Finance Commission and the State Finance Commission**, and the two chapters should be revised together.

STUDY SESSION · CHAPTER F1.9 - THE FIVE SESSIONS

- 1 **Session 1** - The road to 1992: the committees and why local government needed the Constitution (Section 1)
- 2 **Session 2 - The 73rd Amendment: Panchayats in full** (Section 2)
- 3 **Session 3 - The 74th Amendment: Municipalities in full** (Section 3)
- 4 **Session 4 - The Eleventh and Twelfth Schedules**, and the planning committees (Section 4)
- 5 **Session 5** - PESA 1996, and an honest assessment of devolution (Section 5)

Then **42 graded questions**. Budget **four sessions**, about **a day and a half**.

1. Session 1 - The Road to 1992 ★★★★★☆

START FROM ZERO · WHY LOCAL GOVERNMENT NEEDED A CONSTITUTIONAL AMENDMENT

Before 1992, local government in India rested on **two weak foundations**.

First, a Directive Principle. Article 40 - which you met in F1.4 - directs the State to "**organise VILLAGE PANCHAYATS and endow them with such powers and authority as may be necessary to enable them to function as units of self-government.**" But Article 40 is in **Part IV**, and Part IV is **non-justiciable under Article 37**. So no village could sue a State for failing to constitute a panchayat.

Second, the State List. Entry 5 of the State List covers "**Local government**" - so panchayats and municipalities were entirely a **State subject**. States could create them, empower them, ignore them, supersede them, or leave them unconstituted for years, and nothing in the Constitution prevented it.

The result was exactly what that combination predicts. Panchayats existed in some States and not others; elections were postponed indefinitely; bodies were superseded by State Governments at will; and there was no assured share of funds. **Local government was an administrative convenience of the State, not a tier of government.**

The 73rd and 74th Amendments of 1992 changed the foundation, not merely the detail. They inserted **Part IX (Panchayats)** and **Part IXA (Municipalities)** into the Constitution, together with the **Eleventh and Twelfth Schedules**. **Local bodies became constitutionally mandated**, with compulsory elections at fixed intervals, compulsory reservations, and compulsory finance commissions.

The key conceptual point, and it is the one the paper tests through its consequences: the amendments made the EXISTENCE and STRUCTURE of local bodies compulsory, but left much of their POWER to State discretion. Session 5 develops this, and it is the honest explanation of why devolution remains uneven.

MUST MASTER · THE COMMITTEES, IN ORDER

Four bodies shaped the pre-1992 debate, and their sequence is examinable.

- 1 **BALWANT RAI MEHTA COMMITTEE, 1957.** Appointed to examine the working of the Community Development Programme. **Recommended DEMOCRATIC DECENTRALISATION**, which came to be called **PANCHAYATI RAJ**. Recommended a **THREE-TIER** structure - **village, block and district** - with **directly elected village panchayats** and **indirectly constituted bodies above**. **Rajasthan was the first State to establish Panchayati Raj, at Nagaur on 2 October 1959**, followed closely by **Andhra Pradesh**
- 2 **ASHOK MEHTA COMMITTEE, 1977.** Reviewed the decline of panchayats. Recommended a **TWO-TIER** structure - **Zila Parishad at district level** and **Mandal Panchayat** below it - with the **district as the first point of decentralisation**. Also recommended an **official role for political parties** in panchayat elections and **compulsory taxation powers**. Its recommendations were not implemented nationally, but **Karnataka, Andhra Pradesh and West Bengal acted on them**
- 3 **GVK RAO COMMITTEE, 1985.** Concluded that **development had been "bureaucratised"** and panchayats weakened - the memorable phrase is that panchayats had become **"grass without roots"**. Recommended that the **District be the basic unit** of planning and that the **Zila Parishad** be central, with a **District Development Commissioner**
- 4 **LM SINGHVI COMMITTEE, 1986.** The decisive one for our purposes: recommended that **local self-government be CONSTITUTIONALLY RECOGNISED** and that **Gram Sabhas be the base of decentralised democracy**. This is the intellectual origin of the 1992 amendments

The legislative attempts:

- 1 The **64th Amendment Bill 1989** (Rajiv Gandhi Government) sought to constitutionalise panchayats but **was passed by the Lok Sabha and DEFEATED in the Rajya Sabha**
- 2 The **74th Amendment Bill 1989** on municipalities lapsed
- 3 The **73rd and 74th Amendment Acts 1992** (Narasimha Rao Government) finally succeeded, coming into force on **24 April 1993** (Panchayats) and **1 June 1993** (Municipalities)

Two dates worth fixing: 24 APRIL 1993 for Part IX and 1 JUNE 1993 for Part IXA. National Panchayati Raj Day is celebrated on 24 April for that reason.

CHECK YOURSELF · SESSION 1

- 1 On what two weak foundations did local government rest before 1992?
- 2 Why could a village not compel a State to constitute a panchayat?
- 3 Name the four committees in order, with their years and principal recommendation
- 4 Which committee recommended three tiers, and which two?
- 5 Which State first established Panchayati Raj, where and on what date?
- 6 Which committee coined "grass without roots", and which recommended constitutional status?
- 7 What happened to the 64th Amendment Bill 1989?
- 8 Give the commencement dates of Part IX and Part IXA, and the significance of 24 April

2. Session 2 - The 73rd Amendment: Panchayats



MUST MASTER · PART IX - THE STRUCTURE, ARTICLES 243 TO 243-O

- 1 **Article 243** - definitions, including "**village**", "**Gram Sabha**", "**Panchayat**" and "**Panchayat area**"
- 2 **Article 243A - GRAM SABHA.** A body consisting of **persons registered in the electoral rolls of a village** within the panchayat area. **It shall exercise such powers and perform such functions at the village level as the LEGISLATURE OF A STATE may provide.** So the Gram Sabha's existence is compulsory, **but its powers are left to the State** - the first instance of the pattern named in Session 1
- 3 **Article 243B - CONSTITUTION OF PANCHAYATS.** There shall be constituted panchayats at the **VILLAGE, INTERMEDIATE and DISTRICT** levels. **BUT: a State having a population NOT EXCEEDING TWENTY LAKHS may choose NOT to constitute the INTERMEDIATE level.**

The 20-lakh rule is one of the most frequently tested facts in this chapter. Note precisely what it permits: **only the INTERMEDIATE tier may be omitted**, and only by a State with a population **not exceeding 20 lakhs**. The village and district tiers are compulsory everywhere.

- 1 **Article 243C - COMPOSITION.** All seats in a panchayat shall be filled by persons **DIRECTLY ELECTED** from territorial constituencies. The State Legislature may provide for representation of chairpersons of village panchayats in the intermediate panchayat, and so on. **Chairperson of a village panchayat is elected in the manner the State Legislature provides; chairpersons at intermediate and district level are elected BY the elected members of that panchayat**
 - 2 **Article 243D - RESERVATION OF SEATS.** The core provision, worked out in the next box
 - 3 **Article 243E - DURATION.** Every panchayat shall continue for **FIVE YEARS** from the date appointed for its first meeting, and no longer. **Elections must be completed BEFORE the expiry of the five years, or - where a panchayat is dissolved earlier - WITHIN SIX MONTHS of dissolution.** A panchayat constituted on premature dissolution serves only the **remainder of the term**, and if that remainder is less than six months it need not be constituted at all
 - 4 **Article 243F - DISQUALIFICATIONS.** A person is disqualified if disqualified under any law for elections to the State Legislature, **provided that no person shall be disqualified on the ground that he is less than 25 years of age if he has attained 21 - so the minimum age for panchayat membership is 21**
 - 5 **Article 243G - POWERS AND FUNCTIONS.** The State Legislature **MAY** endow panchayats with such powers and authority as may be necessary, **including in relation to the matters listed in the ELEVENTH SCHEDULE. Note the word "MAY" - this is discretionary, and it is the heart of the devolution problem**
 - 6 **Article 243H - taxation powers.** The State Legislature may authorise a panchayat to levy, collect and appropriate taxes, duties, tolls and fees
 - 7 **Article 243-I - STATE FINANCE COMMISSION.** Every State shall constitute a Finance Commission **every FIVE YEARS** to review the financial position of panchayats. **F1.10 covers this**
 - 8 **Article 243J** - audit of accounts, as the State Legislature provides
 - 9 **Article 243K - STATE ELECTION COMMISSION.** Superintendence, direction and control of panchayat elections vests in a **State Election Commission** consisting of a **State Election Commissioner appointed by the GOVERNOR. His conditions of service and tenure shall be as the Governor determines, but he shall NOT BE REMOVED EXCEPT IN LIKE MANNER AND ON THE LIKE GROUNDS AS A JUDGE OF A HIGH COURT** - a strong independence guarantee
 - 10 **Article 243L** - application to Union Territories
 - 11 **Article 243M - EXEMPTED AREAS.** Part IX does not apply to **Scheduled Areas and Tribal Areas** under the Fifth and Sixth Schedules, to Nagaland, Meghalaya and Mizoram, to the hill areas of Manipur with a District Council, and to certain other areas. **This exemption is what PESA 1996 later addressed - Session 5**
 - 12 **Article 243N** - continuance of existing laws
 - 13 **Article 243-O - BAR ON INTERFERENCE BY COURTS in electoral matters.** The validity of any law relating to delimitation of constituencies or allotment of seats **shall not be called in question in any court**, and **no election shall be called in question except by an election petition** as provided by State law
- Article 243K's removal protection and Article 243-O's court bar are both examinable, and they pull in the same direction: they insulate the electoral process from both executive pressure and litigation delay.**

MUST MASTER · ARTICLE 243D - RESERVATIONS, THE MOST TESTED PROVISION

Category	Reservation
Scheduled Castes	Seats reserved in proportion to their population in the panchayat area
Scheduled Tribes	Seats reserved in proportion to their population in the panchayat area
WOMEN	NOT LESS THAN ONE-THIRD of the TOTAL number of seats , including one-third of the seats reserved for SCs and STs
Chairpersons	Offices of chairpersons reserved for SCs, STs and women in the manner the State Legislature provides - women's reservation again NOT LESS THAN ONE-THIRD of the total number of chairperson offices
Backward Classes	The State Legislature MAY make provision - this is DISCRETIONARY, not mandatory

Four points that decide questions:

- 1 **SC and ST reservation is PROPORTIONAL to population; women's reservation is a FIXED FRACTION of one-third.** Do not confuse the two mechanisms
- 2 **Women's one-third is a MINIMUM - "not less than"** - which is why **many States have raised it to 50 per cent** by their own legislation. **That is State action beyond the constitutional floor, and it is permitted precisely because the constitutional provision sets a minimum rather than a fixed quota**
- 3 **Women's reservation applies WITHIN the SC and ST reserved seats too**, so one-third of ST seats are for ST women. It is not an additional separate block
- 4 **Reservation for BACKWARD CLASSES is at the State's discretion** - the Constitution does not require it. This is a favourite trap, because candidates assume symmetry with SC/ST
- 5 **Seats reserved for SCs and STs are to be ALLOTTED BY ROTATION** to different constituencies, as is the reservation of chairperson offices

And note the sunset provision: reservation for SCs and STs under Article 243D **shall cease to have effect on the expiry of the period specified in Article 334** - the same provision that governs reservation in the legislatures, and which has been extended by successive amendments. **Women's reservation has NO such sunset** and is permanent.

CHECK YOURSELF · SESSION 2

- 1 What is the Gram Sabha, and who determines its powers?
- 2 Which tier may be omitted, by which States, and on what population threshold?
- 3 How are chairpersons elected at village level, and at intermediate and district level?
- 4 State the duration rule, the pre-expiry election requirement, and the six-month rule on dissolution
- 5 What is the minimum age for panchayat membership, and which article provides it?
- 6 Which word in Article 243G creates the devolution problem?
- 7 Who appoints the State Election Commissioner, and how is his independence protected?
- 8 Which areas are exempted from Part IX by Article 243M?
- 9 What does Article 243-O bar?
- 10 State the reservation rules for SCs, STs, women, chairpersons and Backward Classes. Which is discretionary?
- 11 Which reservation has a sunset clause and which does not?

3. Session 3 - The 74th Amendment: Municipalities



The 74th Amendment mirrors the 73rd, and the parallels are the fastest way to learn it. **Where the two differ, the difference is usually examinable.**

MUST MASTER · PART IXA - THE CONSTITUTION AND COMPOSITION PROVISIONS

- 1 **Article 243P** - definitions, including "**Metropolitan area**" (population **10 lakhs or more**) and "**Municipal area**"
- 2 **Article 243Q - CONSTITUTION OF MUNICIPALITIES. THREE TYPES**, and the classification test matters:
- 3 **NAGAR PANCHAYAT** - for a **TRANSITIONAL AREA**, that is, an area in transition from rural to urban
- 4 **MUNICIPAL COUNCIL** - for a **SMALLER URBAN AREA**
- 5 **MUNICIPAL CORPORATION** - for a **LARGER URBAN AREA**
- 6 **The Governor specifies which**, having regard to **population, density of population, revenue generated for local administration, percentage of employment in non-agricultural activities, economic importance** and such other factors as he may deem fit
- 7 **Article 243R - COMPOSITION**. All seats filled by **DIRECT ELECTION** from wards. The State Legislature may provide for representation of persons with **special knowledge or experience in municipal administration** (who **shall NOT have the right to vote** in the meetings of the municipality), and of MPs and MLAs
- 8 **Article 243S - WARDS COMMITTEES. Constitution of Wards Committees is COMPULSORY within the territorial area of a municipality having a population of THREE LAKHS OR MORE**. This is the urban analogue of the Gram Sabha, and **the 3-lakh threshold is heavily tested**
- 9 **Article 243T - RESERVATION. Identical in structure to Article 243D** - SC and ST in proportion to population, **women not less than one-third including within SC/ST seats**, chairperson offices reserved as the State Legislature provides, and **Backward Classes at State discretion**

MUST MASTER · PART IXA - DURATION, POWERS, FINANCE AND THE REMAINING PROVISIONS

- 1 **Article 243U - DURATION. FIVE YEARS**, with the same pre-expiry election requirement and the same **SIX-MONTH rule on premature dissolution**
 - 2 **Article 243V - DISQUALIFICATIONS**, with the same **age 21** provision
 - 3 **Article 243W - POWERS AND FUNCTIONS**. The State Legislature **MAY** endow municipalities with powers, including in relation to the **TWELFTH SCHEDULE**. **Again "may"**
 - 4 **Article 243X** - taxation powers
 - 5 **Article 243Y - the STATE FINANCE COMMISSION** constituted under Article 243-I also reviews the financial position of **municipalities**. **Note: ONE State Finance Commission covers BOTH panchayats and municipalities** - a point candidates get wrong by assuming two separate commissions
 - 6 **Article 243Z** - audit
 - 7 **Article 243ZA - ELECTIONS**. Superintendence vests in the **same State Election Commission** referred to in Article 243K. **Again: ONE State Election Commission for both rural and urban bodies**
 - 8 **Article 243ZB** - application to Union Territories
 - 9 **Article 243ZC - EXEMPTED AREAS**. Part IXA does not apply to Scheduled Areas and Tribal Areas
 - 10 **Article 243ZD - DISTRICT PLANNING COMMITTEE**
 - 11 **Article 243ZE - METROPOLITAN PLANNING COMMITTEE**
 - 12 **Article 243ZF** - continuance of existing laws
 - 13 **Article 243ZG - BAR ON INTERFERENCE BY COURTS**, mirroring Article 243-O
- THE TWO "ONE, NOT TWO" POINTS ARE THE MOST USEFUL IN THIS SESSION: there is ONE State Election Commission (Art 243K, applied to municipalities by 243ZA) and ONE State Finance Commission (Art 243-I, applied to municipalities by 243Y), each covering BOTH panchayats and municipalities.**

MUST MASTER · THE TWO PLANNING COMMITTEES - ARTICLES 243ZD AND 243ZE

Feature	District Planning Committee (243ZD)	Metropolitan Planning Committee (243ZE)
Constituted at	Every district	Every metropolitan area (population 10 lakhs or more)
Purpose	Consolidate the plans of panchayats and municipalities in the district into a draft DISTRICT development plan	Prepare a draft development plan for the metropolitan area as a whole
Election of members	NOT LESS THAN FOUR-FIFTHS of members elected by the elected members of the district panchayat and municipalities in the district, in proportion to the ratio of rural to urban population	NOT LESS THAN TWO-THIRDS of members elected by the elected members of the municipalities and chairpersons of panchayats in the metropolitan area, in proportion to population
Plan forwarded to	The State Government	The State Government

The two fractions - FOUR-FIFTHS for the District Planning Committee and TWO-THIRDS for the Metropolitan Planning Committee - are a classic paired-figure question. Learn them together, and note that the District Committee's fraction is the larger.

Note also the rural-urban proportionality in the DPC. Its elected members are drawn in proportion to the ratio of rural to urban population in the district, which is a deliberate device to prevent either the district panchayat or the municipalities from dominating district planning.

CHECK YOURSELF · SESSION 3

- 1 Name the three types of municipality and the area each serves
- 2 On what factors does the Governor classify an area?
- 3 At what population is a Wards Committee compulsory?
- 4 Can co-opted members with special knowledge vote in municipality meetings?
- 5 How many State Election Commissions and State Finance Commissions does a State have, and which articles apply them to municipalities?
- 6 Define a metropolitan area
- 7 Give the elected-member fractions for the District and Metropolitan Planning Committees
- 8 To whom does each planning committee forward its draft plan?

4. Session 4 - The Eleventh and Twelfth Schedules



MUST MASTER · THE TWO SCHEDULES - 29 AND 18

- 1 **ELEVENTH SCHEDULE** - added by the **73rd Amendment**. Contains **29 subjects** that may be devolved to **PANCHAYATS** under Article 243G
- 2 **TWELFTH SCHEDULE** - added by the **74th Amendment**. Contains **18 subjects** that may be devolved to **MUNICIPALITIES** under Article 243W

The counts 29 and 18 are among the most frequently asked single facts in Module 1. Learn them as a pair, and associate: **Eleventh → 73rd → Panchayats → 29; Twelfth → 74th →**

Municipalities → 18.

ELEVENTH SCHEDULE - the 29 subjects, grouped for memory:

- 1 **Agriculture and land:** agriculture including agricultural extension; land improvement and soil conservation; land reforms and land consolidation; minor irrigation, water management and watershed development
- 2 **Rural economy:** animal husbandry, dairying and poultry; fisheries; social forestry and farm forestry; minor forest produce; small-scale industries including food processing; khadi, village and cottage industries
- 3 **Infrastructure:** drinking water; fuel and fodder; roads, culverts, bridges, ferries, waterways and other means of communication; rural electrification including distribution of electricity; non-conventional energy sources
- 4 **Social sector:** poverty alleviation programmes; education including primary and secondary schools; technical training and vocational education; adult and non-formal education; libraries; cultural activities; health and sanitation including hospitals, primary health centres and dispensaries; family welfare; women and child development; social welfare including welfare of the handicapped and mentally retarded
- 5 **Vulnerable groups and public systems:** welfare of the weaker sections, and in particular of Scheduled Castes and Scheduled Tribes; public distribution system; maintenance of community assets; markets and fairs; rural housing

TWELFTH SCHEDULE - the 18 subjects:

- 1 Urban planning including town planning
- 2 Regulation of land use and construction of buildings
- 3 Planning for economic and social development
- 4 Roads and bridges
- 5 Water supply for domestic, industrial and commercial purposes
- 6 Public health, sanitation, conservancy and solid waste management
- 7 Fire services
- 8 Urban forestry, protection of the environment and promotion of ecological aspects
- 9 Safeguarding the interests of weaker sections of society, including the handicapped and mentally retarded
- 10 Slum improvement and upgradation
- 11 Urban poverty alleviation
- 12 Provision of urban amenities and facilities such as parks, gardens and playgrounds
- 13 Promotion of cultural, educational and aesthetic aspects
- 14 Burials and burial grounds; cremations, cremation grounds and electric crematoria
- 15 Cattle pounds; prevention of cruelty to animals
- 16 Vital statistics including registration of births and deaths
- 17 Public amenities including street lighting, parking lots, bus stops and public conveniences
- 18 Regulation of slaughter houses and tanneries

Three items worth noting because they are distinctive and get asked:

- 1 **FIRE SERVICES** is in the Twelfth Schedule (municipalities) and **NOT** in the Eleventh
- 2 **VITAL STATISTICS including registration of births and deaths** is Twelfth Schedule
- 3 **REGULATION OF SLAUGHTER HOUSES AND TANNERIES** is the last entry of the Twelfth Schedule
- 4 **PUBLIC DISTRIBUTION SYSTEM** is Eleventh Schedule (panchayats)

COMMON UPSC TRAP · THE CRITICAL QUALIFICATION ABOUT BOTH SCHEDULES

Neither Schedule devolves anything by itself.

Read **Article 243G** again: "**the Legislature of a State MAY, by law, endow the Panchayats with such powers and authority as may be necessary to enable them to function as institutions of self-government... including in relation to the matters listed in the Eleventh Schedule.**"

The word is "MAY", and the actor is the STATE LEGISLATURE. So:

- 1 **The Eleventh Schedule is a MENU, not a transfer.** It lists what a State **may** devolve; it does not itself devolve anything
- 2 **The same is true of the Twelfth Schedule under Article 243W**
- 3 **A State that devolves two of the 29 subjects has complied with the Constitution** just as much as a State that devolves all 29, because the provision is permissive

This is the single most important conceptual point in the chapter, and it explains the entire devolution debate in Session 5. **It also generates a favourite examination trap:** a stem asserting that "the 73rd Amendment transferred 29 subjects to panchayats" is **WRONG**. The amendment **listed** 29 subjects that States **may** transfer.

Contrast what the amendments DID make compulsory, because the distinction is the chapter's organising idea:

- 1 **COMPULSORY:** the existence of the three tiers (subject to the 20-lakh exception for the intermediate tier); five-year terms; elections before expiry or within six months of dissolution; reservations for SCs, STs and women; a State Election Commission; a State Finance Commission every five years; Wards Committees above 3 lakhs; District and Metropolitan Planning Committees
- 2 **DISCRETIONARY:** the powers and functions actually devolved; the Gram Sabha's powers; reservation for Backward Classes; taxation powers; the manner of electing the village chairperson

Structure was mandated. Power was left to the States. That sentence is the whole chapter.

CHECK YOURSELF · SESSION 4

- 1 How many subjects in the Eleventh Schedule, and how many in the Twelfth? Associate each with its amendment and its bodies
- 2 Name five Eleventh Schedule subjects and five Twelfth Schedule subjects
- 3 Which Schedule contains fire services? Which contains the public distribution system?
- 4 Why is it wrong to say the 73rd Amendment "transferred" 29 subjects to panchayats?
- 5 List what the amendments made COMPULSORY and what they left DISCRETIONARY

5. Session 5 - PESA, and What Devolution Achieved



MUST MASTER · PESA 1996 - EXTENDING PART IX TO SCHEDULED AREAS

Recall **Article 243M**: Part IX does **not apply** to the **Fifth Schedule Scheduled Areas** and Sixth Schedule Tribal Areas. That left the panchayat framework inapplicable in precisely the areas with the greatest need for local control over land and resources.

The PANCHAYATS (EXTENSION TO THE SCHEDULED AREAS) ACT, 1996 - "PESA" - extended Part IX to the **Fifth Schedule Scheduled Areas**, with modifications recognising customary law and traditional practice.

PESA's distinctive features, and they go significantly beyond Part IX:

- 1 **The GRAM SABHA is given real, mandatory powers** - not left to State discretion as under Article 243A. Under PESA the Gram Sabha is **competent to safeguard and preserve the traditions and customs of the people, their cultural identity, community resources and customary mode of dispute resolution**
- 2 **MANDATORY CONSULTATION of the Gram Sabha or Panchayat before LAND ACQUISITION** in Scheduled Areas, and before **resettlement or rehabilitation** of affected persons
- 3 **RECOMMENDATION of the Gram Sabha or Panchayat is MANDATORY for granting PROSPECTING LICENCES OR MINING LEASES for MINOR MINERALS**, and for grant of concessions for their exploitation by auction
- 4 **Gram Sabha powers over:** management of **minor water bodies**; control over **money-lending** to Scheduled Tribes; control over local plans and resources including **Tribal Sub-Plans**; **prohibition or regulation of the sale and consumption of intoxicants**; **ownership of MINOR FOREST PRODUCE**; preventing **alienation of land** and restoring unlawfully alienated land
- 5 **Reservation of seats** in Scheduled Areas panchayats shall be **in proportion to the population**, but **not less than one-half of the total seats shall be reserved for Scheduled Tribes**, and **all seats of chairpersons at all levels shall be reserved for STs**

Two PESA facts most likely to be asked: **OWNERSHIP OF MINOR FOREST PRODUCE** vests in the Gram Sabha, and **NOT LESS THAN ONE-HALF** of the seats are reserved for Scheduled Tribes with **ALL chairperson offices reserved for STs**.

PESA applies to Fifth Schedule areas in ten States (CONFIRM the current list, commonly given as Andhra Pradesh, Telangana, Chhattisgarh, Gujarat, Himachal Pradesh, Jharkhand, Madhya Pradesh, Maharashtra, Odisha and Rajasthan).

Note the relationship to the Forest Rights Act 2006, which recognises individual and community forest rights and gives the **Gram Sabha** the authority to initiate the process of determining them.

PESA and the FRA together make the Gram Sabha the pivotal institution in Scheduled Areas - a considerably stronger position than the Gram Sabha holds under Article 243A generally.

KNOW · AN HONEST ASSESSMENT OF DEVOLUTION

The amendments are a genuine constitutional achievement, and the honest position acknowledges both what they secured and what they did not.

What they secured, and these are real:

- 1 **Local bodies now EXIST everywhere and cannot be left unconstituted.** Before 1992 they could be
- 2 **Elections happen on time.** The five-year term with the compulsory pre-expiry election and the six-month rule on dissolution, policed by an independent State Election Commission whose Commissioner enjoys High-Court-judge removal protection, has largely ended the practice of indefinite postponement
- 3 **Women's political participation increased on a scale with few parallels anywhere.** The one-third floor - raised to about half in many States - has brought a very large number of women into elected office. This is the amendments' clearest success
- 4 **SC and ST representation is proportional and rotational**
- 5 **A State Finance Commission must review local finances every five years**

What they did not secure:

- 1 **DEVOLUTION OF FUNDS, FUNCTIONS AND FUNCTIONARIES - the "THREE Fs" - remains uneven**, because Articles 243G and 243W are permissive. States have devolved subjects on paper without transferring the staff or the budget to discharge them
- 2 **PARALLEL BODIES** - centrally sponsored scheme societies and district agencies often perform functions nominally devolved to panchayats, bypassing them
- 3 **FISCAL DEPENDENCE** - most panchayats raise very little of their own revenue and depend on transfers, which limits real autonomy whatever the formal position
- 4 **CAPACITY** - small bodies often lack technical staff to plan and execute, which becomes a self-fulfilling argument against devolving more
- 5 **State Finance Commission recommendations are frequently delayed or not acted upon**, unlike the Union Finance Commission's

The balanced formulation for an interview: the 73rd and 74th Amendments **constitutionalised the STRUCTURE of local self-government but left its SUBSTANCE to State legislation**, and the resulting gap between form and function is the central problem of Indian decentralisation. **The remedy is not further constitutional amendment so much as the political will to transfer the three Fs** - and the fact that some States have done so demonstrates that the constitutional framework is adequate to permit it.

And note the connection back to F1.4. Article 40 was a Directive Principle - non-justiciable, unenforceable. The 73rd Amendment took that Directive and **gave part of it justiciable form** in Part IX. **That is the clearest example in the Constitution of a Directive Principle being converted into enforceable provision by amendment** - the F1.4 point about Part IV setting the agenda that Part III and later amendments implement. **It is also a good answer to any question about whether Directive Principles matter.**

ACTION · WHERE THIS LEAVES YOU, AND WHAT F1.10 DOES

You now have the third tier. **Next: Chapter F1.10 - the FINANCE COMMISSION and the STATE FINANCE COMMISSION**, which completes the cluster that supplied four Polity questions in 2023. F1.10 covers **Article 280**, the Commission's composition and qualifications, its terms of reference, the distinction between its recommendations and their acceptance, vertical and horizontal devolution, the criteria used by recent Commissions, the **16th Finance Commission** now in progress, and the **Article 243-I State Finance Commission** you met in this chapter - together with the reason the two behave so differently in practice.

6. Graded Practice - 42 Questions ★★★★★

6.1 Level 1 - Recognition

Q. 1. Panchayats were given constitutional status by the

(a) 42nd Amendment (b) 44th Amendment (c) 73rd Amendment (d) 74th Amendment

Q. 2. Municipalities were given constitutional status by the

(a) 71st Amendment (b) 73rd Amendment (c) 74th Amendment (d) 76th Amendment

Q. 3. Part IX of the Constitution came into force on

(a) 24 April 1993 (b) 1 June 1993 (c) 2 October 1959 (d) 26 January 1993

Q. 4. National Panchayati Raj Day is observed on

(a) 2 October (b) 24 April (c) 1 June (d) 14 November

Q. 5. The Eleventh Schedule contains

(a) 18 subjects (b) 22 subjects (c) 29 subjects (d) 32 subjects

Q. 6. The Twelfth Schedule contains

(a) 12 subjects (b) 18 subjects (c) 22 subjects (d) 29 subjects

Q. 7. The Directive Principle relating to village panchayats is

(a) Article 39 (b) Article 40 (c) Article 43 (d) Article 45

Q. 8. The Balwant Rai Mehta Committee reported in

(a) 1952 (b) 1957 (c) 1977 (d) 1986

Q. 9. Panchayati Raj was first inaugurated in

(a) Andhra Pradesh (b) Rajasthan (c) Gujarat (d) Karnataka

Q. 10. The committee that recommended constitutional status for local self-government was the

(a) Balwant Rai Mehta Committee (b) Ashok Mehta Committee (c) GVK Rao Committee (d) LM Singhvi Committee

Q. 11. The intermediate level panchayat may be omitted in a State having a population not exceeding

(a) 10 lakhs (b) 20 lakhs (c) 30 lakhs (d) 50 lakhs

Q. 12. The term of a panchayat is

(a) 3 years (b) 4 years (c) 5 years (d) 6 years

Q. 13. Reservation for women in panchayats is

(a) not less than one-fourth of total seats (b) not less than one-third of total seats (c) exactly one-third of total seats (d) one-half of total seats

Q. 14. The minimum age for membership of a panchayat is

(a) 18 (b) 21 (c) 25 (d) 30

Q. 15. A Wards Committee is compulsory in a municipality with a population of

(a) 1 lakh or more (b) 2 lakhs or more (c) 3 lakhs or more (d) 5 lakhs or more

Q. 16. A metropolitan area is defined as having a population of

(a) 3 lakhs or more (b) 5 lakhs or more (c) 10 lakhs or more (d) 20 lakhs or more

Q. 17. The State Election Commissioner is appointed by the

(a) President (b) Chief Election Commissioner (c) Governor (d) Chief Minister

Q. 18. PESA was enacted in

(a) 1992 (b) 1993 (c) 1996 (d) 2006

6.2 Level 2 - Understanding

Q. 19. Before 1992, a village could not compel a State to constitute a panchayat because

(a) panchayats were prohibited (b) Article 40 is a non-justiciable Directive Principle and local government was a State List subject (c) the Supreme Court had struck down panchayats (d) Parliament lacked competence

Q. 20. The Ashok Mehta Committee recommended

(a) a three-tier structure (b) a two-tier structure with the Zila Parishad and Mandal Panchayat, treating the district as the first point of decentralisation (c) abolition of panchayats (d) direct central administration

Q. 21. The phrase "grass without roots" is associated with the

(a) Balwant Rai Mehta Committee (b) Ashok Mehta Committee (c) GVK Rao Committee (d) LM Singhvi Committee

Q. 22. Which tier(s) of panchayat are compulsory in all States regardless of population?

(a) All three (b) Village and district (c) Intermediate and district (d) Village only

Q. 23. Where a panchayat is dissolved prematurely, elections must be held within

(a) three months (b) six months (c) one year (d) before the original term would have expired

Q. 24. Reservation for Backward Classes in panchayats is

(a) mandatory in proportion to population (b) mandatory at one-third (c) at the discretion of the State Legislature (d) prohibited

Q. 25. SC/ST reservation in panchayats is

(a) a fixed one-third (b) in proportion to their population in the panchayat area (c) at State discretion (d) one-half

Q. 26. Women's reservation in panchayats applies

(a) only to general seats (b) to the total number of seats including those reserved for SCs and STs (c) only at village level (d) only to chairperson offices

Q. 27. The State Election Commissioner may be removed

(a) at the Governor's pleasure (b) only in like manner and on like grounds as a judge of a High Court (c) by the State Legislature by simple majority (d) by the Chief Election Commissioner

Q. 28. The three types of urban local body are

(a) Gram Panchayat, Panchayat Samiti, Zila Parishad (b) Nagar Panchayat, Municipal Council, Municipal Corporation (c) Ward, Zone, City (d) Town Area, Notified Area, City Board

Q. 29. A Nagar Panchayat is constituted for

(a) a larger urban area (b) a smaller urban area (c) a transitional area, in transition from rural to urban (d) a metropolitan area

Q. 30. How many State Finance Commissions does a State constitute for panchayats and municipalities?

(a) Two separate commissions (b) One commission covering both, under Article 243-I applied to municipalities by Article 243Y (c) One for each district (d) None; the Union Finance Commission covers both

Q. 31. The proportion of District Planning Committee members who must be elected by the elected members of the district panchayat and municipalities is

(a) not less than one-half (b) not less than two-thirds (c) not less than four-fifths (d) all of them

Q. 32. The proportion of Metropolitan Planning Committee members who must be elected is

(a) not less than one-half (b) not less than two-thirds (c) not less than four-fifths (d) all of them

Q. 33. Under PESA, ownership of minor forest produce vests in

(a) the State Forest Department (b) the Gram Sabha (c) the Zila Parishad (d) the Union Government

6.3 Level 3 - Recruitment Test standard**Q. 34. Match List-I with List-II and select the correct answer using the code below:**

List-I	List-II
A. Gram Sabha	1. Article 243B
B. Constitution of Panchayats at three levels	2. Article 243A
C. State Election Commission	3. Article 243-I
D. State Finance Commission	4. Article 243K

(a) A-2 B-1 C-4 D-3 (b) A-1 B-2 C-4 D-3 (c) A-2 B-1 C-3 D-4 (d) A-2 B-4 C-1 D-3

Q. 35. Consider the following statements:

- 1 The Eleventh Schedule lists 29 subjects and the Twelfth Schedule 18.
- 2 The 73rd Amendment transferred all 29 subjects to panchayats.
- 3 Articles 243G and 243W use the word "may", leaving devolution to State legislation.

Which of the above statements are correct?

(a) 1 and 2 only (b) 1 and 3 only (c) 2 and 3 only (d) 1, 2 and 3

Q. 36. Which one of the following statements is not correct?

(a) A State with a population not exceeding 20 lakhs may omit the intermediate tier (b) The term of a panchayat is five years (c) Reservation for women is a maximum of one-third, which States may not exceed (d) The minimum age for panchayat membership is 21

Q. 37. Consider the following statements about PESA 1996:

- 1 It extends Part IX to Fifth Schedule Scheduled Areas.
- 2 Not less than one-half of the seats are reserved for Scheduled Tribes.
- 3 All chairperson offices at all levels are reserved for Scheduled Tribes.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 38. Which one of the following is in the Twelfth Schedule but NOT in the Eleventh?

(a) Public distribution system (b) Fire services (c) Minor irrigation (d) Poverty alleviation programmes

Q. 39. The best explanation of the gap between the formal position of panchayats and their actual power is that

(a) the amendments are unconstitutional (b) the amendments made the STRUCTURE compulsory but left the POWERS to State discretion under permissive provisions (c) courts have struck down devolution (d) panchayats refuse additional functions

Q. 40. The 73rd Amendment is the clearest constitutional example of

(a) a Fundamental Right being curtailed (b) a Directive Principle being given justiciable form by amendment (c) a Fundamental Duty being enforced (d) the basic structure being altered

Q. 41. Consider the following statements:

- 1 Article 243-O bars courts from questioning laws relating to delimitation of panchayat constituencies.
- 2 An election to a panchayat may be questioned only by an election petition as provided by State law.
- 3 Article 243ZG makes a parallel provision for municipalities.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 42. The "three Fs" whose incomplete transfer limits panchayat effectiveness are

(a) forests, farms and fisheries (b) funds, functions and functionaries (c) finance, federalism and franchise (d) food, fuel and fodder

7. Answers and Explanations

7.1 Level 1

Q	Ans	Explanation
1	c	73rd Amendment - Part IX and the Eleventh Schedule
2	c	74th Amendment - Part IXA and the Twelfth Schedule
3	a	24 April 1993
4	b	24 April , the date Part IX commenced
5	c	29 subjects
6	b	18 subjects
7	b	Article 40
8	b	1957 - recommended democratic decentralisation, i.e. Panchayati Raj
9	b	Rajasthan , at Nagaur on 2 October 1959, followed by Andhra Pradesh
10	d	LM Singhvi Committee 1986
11	b	20 lakhs - and only the intermediate tier may be omitted
12	c	5 years
13	b	Not less than one-third - a floor, not a ceiling

Q	Ans	Explanation
14	b	21 - Article 243F
15	c	3 lakhs or more - Article 243S
16	c	10 lakhs or more - Article 243P
17	c	Governor - Article 243K
18	c	1996

7.2 Level 2

Q	Ans	Explanation
19	b	Article 40 is non-justiciable (Part IV, Art 37) and local government was State List Entry 5 - so there was no enforceable obligation
20	b	Two tiers, Zila Parishad and Mandal Panchayat, district as the first point of decentralisation
21	c	GVK Rao Committee 1985 - panchayats had become "grass without roots"
22	b	Village and district. Only the intermediate tier is dispensable, and only below 20 lakhs
23	b	Six months - and the new body serves only the remainder of the term
24	c	State discretion - the Constitution does not require it. A favourite trap, since candidates assume symmetry with SC/ST
25	b	In proportion to population - a different mechanism from women's fixed fraction
26	b	To the total number of seats INCLUDING SC and ST reserved seats - not an additional separate block
27	b	Only in like manner and on like grounds as a High Court judge - a strong independence guarantee
28	b	Nagar Panchayat, Municipal Council, Municipal Corporation. Option (a) names the three panchayat tiers
29	c	A transitional area , in transition from rural to urban
30	b	ONE commission , constituted under Article 243-I and applied to municipalities by Article 243Y
31	c	Not less than four-fifths - the larger of the two fractions
32	b	Not less than two-thirds
33	b	The Gram Sabha - one of PESA's most distinctive provisions

7.3 Level 3

Q	Ans	Explanation
34	a	A-2 Gram Sabha = 243A; B-1 three-level constitution = 243B; C-4 State Election Commission = 243K; D-3 State Finance Commission = 243-I
35	b	1 and 3 only. Statement 2 is FALSE - the amendment LISTED 29 subjects that States may devolve; it transferred nothing by itself
36	c	(c) is FALSE. Women's reservation is " not less than " one-third - a MINIMUM , which is exactly why many States have raised it to about one-half
37	d	All three correct - PESA's extension, the one-half ST seat floor, and the reservation of all chairperson offices for STs
38	b	Fire services - Twelfth Schedule (municipalities). PDS, minor irrigation and poverty alleviation are Eleventh Schedule
39	b	Structure compulsory, powers discretionary - the chapter's organising idea and the honest explanation of the devolution gap
40	b	A Directive Principle (Art 40) given justiciable form by amendment - the clearest such example, and a good answer on whether Part IV matters
41	d	All three correct - the electoral court-bar provisions for panchayats (243-O) and municipalities (243ZG)
42	b	Funds, functions and functionaries

8. One-Minute Revision

ONE-MINUTE REVISION · CHAPTER F1.9 - LOCAL GOVERNMENT

WHY THIS CHAPTER MATTERS the verified **2023** paper drew **FOUR** Polity questions from local government and Finance Commissions against only **TWO** from Fundamental Rights · local government is **FACTUAL** and **highly structured**, so it generates clean single-answer questions in quantity · **learn the structure precisely; revise F1.9 and F1.10 together**

BEFORE 1992 - two weak foundations **Art 40** (village panchayats) is a **DIRECTIVE PRINCIPLE**, non-justiciable under **Art 37** · local government is **STATE LIST ENTRY 5** · so **no village could compel a State to constitute a panchayat**, elections were postponed indefinitely and bodies were superseded at will

THE FOUR COMMITTEES BALWANT RAI MEHTA 1957 - recommended **DEMOCRATIC DECENTRALISATION**, i.e. **Panchayati Raj**, in **THREE TIERS** (village, block, district) · **first inaugurated in RAJASTHAN at Nagaur, 2 October 1959**, then Andhra Pradesh · **ASHOK MEHTA 1977** - **TWO TIERS**: Zila Parishad + Mandal Panchayat, **district as the first point of decentralisation**, role for political parties · **GVK RAO 1985** - development had been

"bureaucratised", panchayats were "**GRASS WITHOUT ROOTS**"; district as the basic planning unit · **LM SINGHVI 1986** - recommended **CONSTITUTIONAL STATUS** and **Gram Sabha as the base** ·

64th Amendment Bill 1989 passed the LS and was **DEFEATED** in the RS

COMMENCEMENT Part IX (Panchayats) 24 APRIL 1993 - hence **NATIONAL PANCHAYATI RAJ DAY** on 24 April · **Part IXA (Municipalities) 1 JUNE 1993**

PART IX - PANCHAYATS (Arts 243-243-O)

- 1 **243A GRAM SABHA** - registered voters of a village; **powers as the STATE LEGISLATURE provides** (discretionary)
 - 2 **243B THREE TIERS** - village, intermediate, district · **a State with population NOT EXCEEDING 20 LAKHS may omit the INTERMEDIATE tier only**
 - 3 **243C** all seats **DIRECTLY ELECTED**; intermediate and district **chairpersons elected BY the elected members**
 - 4 **243D RESERVATIONS** - see below
 - 5 **243E DURATION 5 YEARS** · election **BEFORE expiry**, or **WITHIN SIX MONTHS of premature dissolution** · a body constituted on dissolution serves only the **remainder**; if the remainder is under six months it need not be constituted
 - 6 **243F MINIMUM AGE 21**
 - 7 **243G POWERS** - "**MAY**" be endowed by the State Legislature, including **Eleventh Schedule matters** - the devolution problem in one word
 - 8 **243H** taxation · **243-I STATE FINANCE COMMISSION every 5 years** · **243J** audit
 - 9 **243K STATE ELECTION COMMISSION** - State Election Commissioner appointed by the **GOVERNOR**, removable only in like manner and on like grounds as a **HIGH COURT JUDGE**
 - 10 **243M EXEMPTS** Fifth and Sixth Schedule areas, Nagaland, Meghalaya, Mizoram, hill areas of Manipur - **the gap PESA later filled**
 - 11 **243-O BARS COURTS** on delimitation; **elections challengeable only by election petition**
243D RESERVATIONS - the most tested provision **SC and ST: IN PROPORTION TO POPULATION** · **WOMEN: NOT LESS THAN ONE-THIRD of TOTAL seats, INCLUDING within SC and ST seats** · chairperson offices reserved as the State provides, women again **NOT LESS THAN one-third** · **BACKWARD CLASSES: STATE DISCRETION ("may")** · **SC/ST seats allotted BY ROTATION** · **SC/ST reservation has an Art 334 sunset; WOMEN'S DOES NOT** · "*not less than*" is why many States raised women's share to about one-half
- PART IXA - MUNICIPALITIES (Arts 243P-243ZG)**

- 1 **243Q THREE TYPES - NAGAR PANCHAYAT** for a **TRANSITIONAL AREA** · **MUNICIPAL COUNCIL** for a **SMALLER URBAN AREA** · **MUNICIPAL CORPORATION** for a **LARGER URBAN AREA** · the **GOVERNOR classifies**, having regard to **population, density, revenue, percentage of non-agricultural employment, economic importance**
 - 2 **243R** direct election from wards; co-opted members with **special knowledge have NO RIGHT TO VOTE**
 - 3 **243S WARDS COMMITTEES COMPULSORY** at **3 LAKHS OR MORE**
 - 4 **243T** reservations **identical in structure to 243D**
 - 5 **243U DURATION 5 YEARS**, same six-month rule · **243V** age 21
 - 6 **243W POWERS - again "MAY"**, including Twelfth Schedule matters
 - 7 **243Y** the **SAME State Finance Commission** covers municipalities · **243ZA** the **SAME State Election Commission**
 - 8 **243P METROPOLITAN AREA = population 10 LAKHS OR MORE**
 - 9 **243ZC** exempts Scheduled and Tribal Areas · **243ZG** court bar
- "ONE, NOT TWO"** there is **ONE State Election Commission (243K, applied by 243ZA)** and **ONE State Finance Commission (243-I, applied by 243Y)**, each covering **BOTH panchayats and municipalities**
- THE TWO PLANNING COMMITTEES** **243ZD DISTRICT PLANNING COMMITTEE** - every district; consolidates panchayat and municipal plans into a **draft district development plan; NOT LESS THAN FOUR-FIFTHS** elected, in proportion to the **rural-to-urban population ratio** · **243ZE METROPOLITAN PLANNING COMMITTEE** - every metropolitan area; **NOT LESS THAN TWO-THIRDS** elected, in proportion to population · **both forward the draft plan to the STATE GOVERNMENT** · *4/5 for district, 2/3 for metropolitan - the district fraction is larger*
- THE SCHEDULES ELEVENTH → 73rd → PANCHAYATS → 29 SUBJECTS** · **TWELFTH → 74th → MUNICIPALITIES → 18 SUBJECTS** · distinctive Twelfth entries: **FIRE SERVICES, VITAL STATISTICS (births and deaths), REGULATION OF SLAUGHTER HOUSES AND TANNERIES, urban planning, slum upgradation, burials and cremations** · distinctive Eleventh entries: **PUBLIC DISTRIBUTION SYSTEM, minor irrigation, minor forest produce, poverty alleviation, khadi and village industries, non-conventional energy**
- THE CRITICAL QUALIFICATION NEITHER SCHEDULE DEVOLVES ANYTHING BY ITSELF** · Arts 243G and 243W say the State Legislature **"MAY"** endow · **the Schedules are a MENU, not a transfer** · so **"the 73rd Amendment transferred 29 subjects to panchayats" is WRONG** · **COMPULSORY: the three tiers, five-year terms, timely elections, SC/ST/women reservations, State Election Commission, State Finance Commission, Wards Committees above 3 lakhs, the two planning committees** · **DISCRETIONARY: powers and functions, Gram Sabha's powers, Backward Class reservation, taxation, manner of electing the village chairperson** · **STRUCTURE WAS MANDATED, POWER WAS LEFT TO THE STATES**
- PESA 1996** extends Part IX to **FIFTH SCHEDULE Scheduled Areas** · the **GRAM SABHA** gets **REAL MANDATORY powers**, not State-dependent ones · **mandatory CONSULTATION** before **LAND ACQUISITION** and before resettlement · **mandatory RECOMMENDATION** for **PROSPECTING LICENCES and MINING LEASES for MINOR MINERALS** · Gram Sabha powers over **minor water bodies, money-lending to STs, intoxicants, Tribal Sub-Plans, and OWNERSHIP OF MINOR FOREST PRODUCE** · prevention and restoration of **land alienation** · **NOT LESS THAN ONE-HALF** of seats reserved for STs and **ALL CHAIRPERSON OFFICES** at all levels reserved for STs · **ten Fifth Schedule States (CONFIRM the list)** · read with the **FOREST RIGHTS ACT 2006**, which also makes the Gram Sabha the initiating authority

HONEST ASSESSMENT SECURED: local bodies now exist everywhere and cannot be left unconstituted · **elections happen on time**, policed by an independent SEC · **women's political participation increased on a scale with few parallels** - the clearest success · proportional SC/ST representation · mandatory five-yearly SFC review · **NOT SECURED:** devolution of the **THREE Fs** - **FUNDS, FUNCTIONS, FUNCTIONARIES** · **parallel bodies** bypassing panchayats · **fiscal dependence** · **capacity deficits** · **SFC recommendations delayed or ignored** · **balanced formulation: the amendments constitutionalised the STRUCTURE and left the SUBSTANCE to State legislation; the remedy is political will, not further amendment**

THE F1.4 CONNECTION Art 40 was a non-justiciable Directive Principle; the 73rd Amendment gave part of it **JUSTICIABLE FORM** in Part IX · the clearest constitutional example of a Directive Principle converted into enforceable provision - and the best short answer to "do Directive Principles matter?"

9. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET · CHAPTER F1.9 - LOCAL GOVERNMENT

2023: local govt + Finance Commissions = 4 Polity Qs vs Fundamental Rights = 2

73rd = PANCHAYATS = Part IX = ELEVENTH SCHEDULE = 29 SUBJECTS = 24 APRIL 1993

74th = MUNICIPALITIES = Part IXA = TWELFTH SCHEDULE = 18 SUBJECTS = 1 JUNE 1993

Art 40 = Directive Principle · State List Entry 5 = why nothing was enforceable pre-1992

COMMITTEES: BALWANT RAI MEHTA 1957 (3 tiers) · ASHOK MEHTA 1977 (2 tiers) · GVK

RAO 1985 ("grass without roots") · LM SINGHVI 1986 (constitutional status)

First Panchayati Raj: RAJASTHAN, Nagaur, 2 Oct 1959

243A Gram Sabha · 243B three tiers, INTERMEDIATE omissible below 20 LAKHS · 243D

reservations · 243E 5 YEARS + 6-MONTH rule · 243F age 21 · 243G "MAY" · 243-I SFC · 243K

SEC · 243M exemptions · 243-O court bar

RESERVATION: SC/ST PROPORTIONAL · WOMEN NOT LESS THAN 1/3 (incl. within SC/ST) ·

BACKWARD CLASSES = STATE DISCRETION

SEC Commissioner: appointed by GOVERNOR, removable only like a HIGH COURT JUDGE

MUNICIPALITIES: NAGAR PANCHAYAT (transitional) · MUNICIPAL COUNCIL (smaller urban) ·

MUNICIPAL CORPORATION (larger urban) — GOVERNOR classifies

WARDS COMMITTEE compulsory at 3 LAKHS · METROPOLITAN AREA = 10 LAKHS

ONE SEC and ONE SFC cover BOTH panchayats and municipalities (243ZA, 243Y)

DPC: 4/5 elected, rural:urban ratio · MPC: 2/3 elected — both forward to STATE GOVT

SCHEDULES ARE A MENU, NOT A TRANSFER — 243G/243W say "MAY"

COMPULSORY: tiers, terms, elections, SC/ST/women reservation, SEC, SFC, Wards Cttee, planning cttees

DISCRETIONARY: powers, Gram Sabha's powers, BC reservation, taxation

PESA 1996: Fifth Schedule areas · Gram Sabha REAL powers · consultation before LAND

ACQUISITION · recommendation for MINOR MINERAL leases · OWNERSHIP OF MINOR

FOREST PRODUCE · ST seats NOT LESS THAN HALF · ALL chairperson offices for STs

THREE Fs: FUNDS, FUNCTIONS, FUNCTIONARIES — the unfinished transfer

STRUCTURE MANDATED, POWER LEFT TO STATES

73rd Amdt = the clearest case of a DIRECTIVE PRINCIPLE given JUSTICIABLE FORM